

Delaware Record Expungement

Agent Training Reference

participant/case info review zone

A complete operational knowledge base for clearing criminal records in Delaware: the three expungement tiers — mandatory expungement through the State Bureau of Identification (§ 4373), now AUTOMATIC monthly under the Clean Slate Act (§ 4373A); discretionary expungement by petition to the court (§ 4374); and discretionary expungement following a pardon (§ 4375).

Coverage	State of Delaware (Superior Court for adult cases; Family Court for juvenile; SBI for mandatory/automatic)
Primary statutes	11 Del. C. §§ 4372–4375 (adult expungement); 10 Del. C. §§ 1017–1019 (Family Court); § 4373A / § 1017A (automatic)
Controlling changes	Clean Slate Act (SB 111/112, 2021); automatic mandatory expungement implemented August 1, 2024
Document type	Internal training / retrieval reference — not legal advice
Currency	Reflects law as of mid-2026, including the Clean Slate automatic rollout

VERIFY BEFORE RELYING

Delaware has THREE expungement tiers and the agent must not conflate them: (1) MANDATORY expungement (§ 4373), obtained through the SBI and now also AUTOMATIC monthly under the Clean Slate Act (§ 4373A, since Aug 1, 2024); (2) DISCRETIONARY expungement (§ 4374), a petition to the Superior or Family Court that the Attorney General may oppose; and (3) DISCRETIONARY expungement following a PARDON (§ 4375). The automatic rollout has been slow (only about 805 records by Nov 2024, under 1% of those eligible), so the agent must verify whether a given record was actually auto-expunged rather than assuming the monthly SBI process reached it.

How the agent should use this document

Delaware clears records by EXPUNGEMENT. The agent routes by whether the record is MANDATORY-eligible (handled by the SBI, and now automatic) or only DISCRETIONARY-eligible (a court petition the AG can oppose), and applies the CASE rule throughout: eligibility runs at the level of the whole case, and for most discretionary categories the entire case must be eligible and the person must have no prior or subsequent convictions. The agent should (1) determine the disposition and offense level; (2) check mandatory eligibility and the automatic process first; (3) fall to discretionary (§ 4374) where mandatory does not apply; and (4) consider the pardon route (§ 4375) for otherwise-ineligible convictions.

CONTENTS

1. Eligibility rules (the three tiers)
2. Waiting periods
3. Disqualifying / ineligible offenses
4. Case outcome rules
5. Required forms
6. Filing instructions
7. Court-specific quirks
8. Fee information

signature/date review zone

9. Criminal history (SBI) request process
10. Sample petitions and completed examples

Statutory shorthand used throughout

Term	Meaning
Mandatory expungement (§ 4373)	SBI-handled clearing the person is entitled to when criteria are met; no court discretion
Automatic (§ 4373A)	SBI identifies and expunges mandatory-eligible cases monthly since Aug 1, 2024 — no request needed
Discretionary (§ 4374)	Court petition; granted if continued record is a manifest injustice; AG may object
Discretionary after pardon (§ 4375)	Petition route available, with no waiting period, after an unconditional pardon
SBI	State Bureau of Identification — handles mandatory/automatic expungement and the criminal-history report
Case rule	Eligibility is judged on the entire case; for most categories every charge in the case must be eligible
Terminated in favor of the accused	Acquittal, nolle prosequi, dismissal — mandatory-eligible with no waiting period
APEX	State-funded Delaware program assisting people through the expungement process

1. Eligibility rules

Three tiers, considered in order: mandatory (and automatic) first, then discretionary, then pardon-based.

Tier 1 — Mandatory expungement (§ 4373), through the SBI / automatic (§ 4373A). The person is entitled to expungement when the criteria are met; the court has no discretion. Covers cases terminated in favor of the accused (acquittal, nolle, dismissal — no wait), certain violations and low-level offenses after a waiting period, marijuana / paraphernalia possession and underage-alcohol convictions, and certain felonies after 10 years. Since August 1, 2024 the SBI identifies and expunges mandatory-eligible cases automatically each month — no request required — though a person may still request mandatory expungement from the SBI if the automatic process has not reached the case.

Tier 2 — Discretionary expungement (§ 4374), petition to court. For records that do not qualify as mandatory: § 4373(b)-listed misdemeanors (after 7 years), multiple violations or misdemeanors across more than one case (after 5 years), and a single nonviolent felony (after 7 years), each requiring no other prior or subsequent convictions. The court grants expungement when continued maintenance of the record works a manifest injustice; the Attorney General may object within 120 days.

Tier 3 — Discretionary expungement following a pardon (§ 4375). A person who receives an unconditional pardon may petition for discretionary expungement with NO waiting period.

signature/date review zone

AGENT GUIDANCE

Check mandatory eligibility FIRST — it is an entitlement and now automatic; only fall to a § 4374 court petition when mandatory does not apply.

An unconditional pardon opens the § 4375 discretionary route immediately, with no waiting period — flag that for clients with otherwise-ineligible convictions.

2. Waiting periods

Waits run from the date of conviction or release from incarceration, whichever is later (count from the most recent of conviction, sentence completion, probation/parole end, or final restitution).

Disposition / category	Tier	Waiting period
Terminated in favor of accused (acquittal/nolle/dismissal)	Mandatory	None
Marijuana/paraphernalia possession; underage alcohol	Mandatory	None
Violation(s), same case	Mandatory	3 years
Single misdemeanor / drug possession § 4756	Mandatory	5 years
Certain eligible felonies	Mandatory	10 years
Misdemeanor not listed in § 4373(b), single case	Discretionary	3 years
Multiple violations/misdemeanors across cases	Discretionary	5 years
§ 4373(b)-listed misdemeanor	Discretionary	7 years
Single nonviolent felony	Discretionary	7 years
After unconditional pardon	Discretionary (§ 4375)	None

Mandatory categories carry the shorter, entitlement-based waits and (since Aug 1, 2024) run automatically; discretionary categories carry the 3-, 5-, and 7-year waits and require a court petition. All discretionary categories require no other prior or subsequent disqualifying convictions, and the entire case must be eligible.

AGENT GUIDANCE

Compute every wait from the LATER of conviction or release from incarceration, and confirm no disqualifying prior/subsequent conviction breaks discretionary eligibility.

'Terminated in favor of the accused' and the marijuana/underage-alcohol categories carry NO wait and are mandatory — the fastest relief.

3. Disqualifying / ineligible offenses

Exclusions in § 4372(f) and § 4374 bar certain offenses; some are mandatory-ineligible but reachable by discretionary petition.

signature/date review zone

Barred from discretionary expungement (§ 4374), in addition to § 4372(f) exclusions:

Title 11 felonies listed in § 4201(c) — the violent-felony schedule.

'Felony conviction involving physical or sexual assault crimes' as defined in § 309 of Title 31 (Beau Biden Child Protection Act).

Serious offenses such as manslaughter and murder in the first degree are categorically excluded.

Mandatory-ineligible but possibly discretionary: A conviction involving domestic violence, a child victim, or a vulnerable adult victim is NOT eligible for mandatory expungement, but may be eligible for discretionary expungement after 7 years, or discretionary expungement after a pardon.

VERIFY BEFORE RELYING

The exclusion lists are defined by statute (§ 4372(f), § 4374, the § 4201(c) violent-felony schedule, and the Beau Biden Child Protection Act in Title 31), and domestic-violence / child-victim / vulnerable-adult records sit on the mandatory/discretionary line. The agent must map the specific offense to its statute and confirm which tier (if any) it falls in before declaring eligibility.

4. Case outcome rules

Disposition and offense level determine the tier, the wait, and the procedure. This is the agent's primary routing logic for Delaware.

Case outcome	Tier / route	Channel	Wait
Acquittal / nolle / dismissal	Mandatory (auto)	SBI	None
Marijuana/paraphernalia; underage alcohol	Mandatory (auto)	SBI	None
Violation(s), same case	Mandatory (auto)	SBI	3 yrs
Single misdemeanor / § 4756 possession	Mandatory (auto)	SBI	5 yrs
Eligible felony	Mandatory (auto)	SBI	10 yrs
Non-§ 4373(b) misdemeanor, 1 case	Discretionary	Court petition	3 yrs
Multiple misd./violations, 2+ cases	Discretionary	Court petition	5 yrs
§ 4373(b) misd. / single nonviolent felony	Discretionary	Court petition	7 yrs
After unconditional pardon	Discretionary § 4375	Court petition	None
§ 4201(c) violent felony; Beau Biden assault	Not eligible	—	—

Effect of relief: an expungement removes the case from the criminal-history record so consumer reporting agencies cannot see it on public sources. Mandatory and automatic relief is an entitlement; discretionary relief turns on the court's manifest-injustice finding after the AG has had 120 days to respond.

AGENT GUIDANCE

Tell users plainly which tier they are on: mandatory/automatic is owed and handled by the SBI; discretionary is a court petition the AG can contest and the judge decides.

Because automatic rollout is slow, if a mandatory-eligible record has not cleared, the person can still request mandatory expungement directly from the SBI rather than waiting.

5. Required forms

Mandatory/automatic expungement needs no court form; discretionary expungement uses the court's expungement petition packet.

Form / channel	Use
None (automatic, § 4373A)	Mandatory-eligible cases are expunged by the SBI monthly with no filing.
SBI mandatory-expungement request	Contact the SBI (302-739-5884) to request mandatory expungement; if eligible, SBI sends a letter with instructions and any fees.
Expungement Petition packet (Superior Court)	Discretionary expungement (§ 4374) or discretionary expungement following pardon (§ 4375); available at courts.delaware.gov under Superior Court → Expungement.
Criminal History Report (SBI)	Required attachment; the petition is summarily rejected without it. The report expires after 45 days.
Family Court expungement (juvenile)	10 Del. C. §§ 1017–1019 for juvenile records; § 1017A automatic since Aug 1, 2024.

The discretionary packet identifies the petitioner and the case(s), states the statutory basis (§ 4374 or § 4375), and must attach the SBI criminal-history report. A copy is served on the Attorney General, who has 120 days to object or answer; the court may then decide on the papers or set a hearing.

AGENT GUIDANCE

For mandatory relief, route the user to the SBI line (302-739-5884) — no court form. For discretionary, use the Superior Court Expungement Petition packet and ALWAYS attach the SBI criminal-history report.

Watch the 45-day expiry on the criminal-history report — file the packet before it lapses or the court will reject it.

6. Filing instructions

Mandatory is handled by the SBI; discretionary is filed with the Superior Court (Family Court for juvenile).

- 1. Pull the record.** Request an SBI criminal-history report; it confirms each charge, disposition, and the dates that start the waiting periods. The report expires after 45 days.
- 2. Determine the tier.** Mandatory (and automatic) first; discretionary (§ 4374) where mandatory does not apply; § 4375 if there is an unconditional pardon.
- 3a. Mandatory.** Contact the SBI (302-739-5884) and request mandatory expungement, or rely on the monthly automatic process; SBI sends a letter with instructions and any fees.
- 3b. Discretionary.** Complete the Superior Court Expungement Petition packet, attach the SBI criminal-history report (required), and file the original with the Prothonotary in person or by mail.

4. **Pay the fee.** The discretionary filing fee is \$70, payable to the State of Delaware (check accepted).
5. **Service and AG response.** The court sends the petition to the Attorney General, who has 120 days to object or answer.
6. **Decision.** The court may grant on the papers or hold a hearing; if granted, the SBI notifies all courts and agencies holding the records to expunge them.

AGENT GUIDANCE

File the discretionary packet promptly — the criminal-history report is only valid for 45 days, and a petition without it is summarily rejected.

Direct clients to APEX, Delaware's state-funded assistance program, for help through the process and with fees.

7. Court-specific quirks

The features most likely to surprise.

Three tiers, two channels. Mandatory/automatic go through the SBI; discretionary goes through the court. Naming the wrong channel sends the user to the wrong place.

Automatic rollout is slow. Clean Slate automatic expungement began Aug 1, 2024 but cleared only ~805 records by Nov 2024 (under 1% of eligible). Never assume a record auto-cleared — verify, and request mandatory expungement directly if needed.

The case rule. Eligibility is judged on the whole case; for most discretionary categories the entire case must be eligible and the person must have no disqualifying prior/subsequent convictions.

Criminal-history report expires in 45 days. A discretionary petition without a current SBI report is summarily rejected.

The AG gets 120 days. Build the discretionary petition to withstand a possible Attorney General objection.

Pardon opens a no-wait route. An unconditional pardon makes § 4375 discretionary expungement available immediately.

Domestic-violence / child-victim records. Mandatory-ineligible, but may reach discretionary at 7 years or after a pardon.

AGENT GUIDANCE

Lead every Delaware analysis with the mandatory-vs-discretionary split and the case rule; those determine the channel and most outcomes.

Given the slow automatic rollout, proactively check actual clearance and use the SBI request path rather than waiting on the monthly process.

8. Fee information

Mandatory/automatic relief is low- or no-cost; discretionary carries a court filing fee.

Item	Amount	Note
Automatic expungement (§ 4373A)	\$0	No filing; SBI processes monthly
Mandatory expungement via SBI request	SBI fee	SBI letter states any required fees
Discretionary petition (§ 4374 / § 4375)	\$70	Payable to State of Delaware; check accepted

SBI criminal-history report	SBI fee	Required attachment; expires after 45 days
APEX assistance	Free	State-funded help with process and fees
Attorney fees (if represented)	Varies	Not required; APEX and clinics assist free

VERIFY BEFORE RELYING

The SBI report fee and any mandatory-expungement fees can change, and fee-assistance funding through APEX is limited; the agent should verify the current discretionary filing fee, SBI fees, and APEX availability at the time of advising rather than quoting fixed figures from memory.

9. Criminal history (SBI) request process

Reviewing the record first confirms dispositions, offense levels, and the dates that start each waiting period — and supplies the report a discretionary petition must attach.

A. State history — SBI. The State Bureau of Identification maintains the official Delaware criminal history and handles mandatory/automatic expungement. The criminal-history report is the required attachment to a discretionary petition and expires after 45 days, so order it close to filing.

B. Court record. The Delaware courts' case search and the Prothonotary confirm dispositions and the filing court for a discretionary petition.

C. Federal — FBI Identity History Summary. For records that may extend beyond Delaware, the FBI fingerprint-based summary is the federal equivalent; Delaware relief reaches Delaware records only.

AGENT GUIDANCE

Order the SBI criminal-history report first and file the discretionary petition within its 45-day validity; the court rejects any petition filed without it.

10. Sample petitions and completed examples

Delaware discretionary expungement is filed on the Superior Court petition packet. Names, dates, and identifiers below are fictional and illustrative.

Example A — Petition for Discretionary Expungement (11 Del. C. § 4374)

SUPERIOR COURT OF THE STATE OF DELAWARE, NEW CASTLE COUNTY
IN RE: THE PETITION OF MARIA T. ALVAREZ ID No. 1809XXXXXX
PETITION FOR DISCRETIONARY EXPUNGEMENT (11 Del. C. 4374)

1. Petitioner: Maria T. Alvarez; DOB 11/30/1990.
 2. On 04/03/2017 petitioner was convicted of a single nonviolent felony (theft) in this Court.
 3. More than seven (7) years have passed since the date of conviction / release from incarceration (4374(a)(3)).
 4. Petitioner has no prior or subsequent convictions.
 5. The conviction is not a 4201(c) violent felony and is not a physical/sexual assault crime under Title 31 309.
 6. Petitioner's SBI criminal-history report (dated within 45 days) is attached, as required.
- WHEREFORE petitioner asks the Court to find that continued maintenance of the record works a manifest injustice and to expunge all records of this case. (Copy served on the Attorney

General, who has 120 days to respond. Filing fee: \$70.)

Examples B, C & D — Other routes

B. MANDATORY / AUTOMATIC EXPUNGEMENT (4373 / 4373A):

A case terminated in favor of the accused, a marijuana or underage-alcohol conviction, or an eligible offense past its wait is expunged by the SBI -- automatically each month, or on request to the SBI (302-739-5884). No court filing.

C. DISCRETIONARY AFTER PARDON (4375):

A person granted an unconditional pardon may petition for discretionary expungement with NO waiting period.

D. CASE-RULE ILLUSTRATION:

For multiple misdemeanors across cases (4374(a)(4), 5-year wait), the ENTIRE case in which each conviction appears must be eligible, and the person must have no other disqualifying prior or subsequent convictions.

This reference is an internal training and retrieval aid for the Wilma assistant. It summarizes Delaware statutes and common practice and is not legal advice. Delaware clears records by EXPUNGEMENT under 11 Del. C. §§ 4372–4375 (and 10 Del. C. §§ 1017–1019 for Family Court), with mandatory expungement now automatic under the Clean Slate Act (§ 4373A / § 1017A, since Aug 1, 2024) though rollout has been slow. The agent must verify the current statutory text, the mandatory and discretionary eligibility criteria and exclusions, the waiting periods, the actual clearance status of a given record, the SBI process and fees, and the pardon route before relying on any rule here.